

14. 9:00 AM CASE NUMBER: MSC20-00056

CASE NAME: GULINGAN VS SU

***HEARING ON MOTION IN RE: STRIKE PLTFS MEMO OF COSTS FILED 09/11/25 AS PREMATURE
FILED BY: SU, YING ZHONG**

TENTATIVE RULING:

Pursuant to the Notice of Withdrawal filed January 28, 2026, defendants' motion to strike is DROPPED from calendar and the hearing date VACATED.

15. 9:00 AM CASE NUMBER: MSC20-00056

CASE NAME: GULINGAN VS SU

***HEARING ON MOTION IN RE: STRIKE PLTFS MEMO OF COSTS FILED 09/16/25 AS PREMATURE
FILED BY: SU, YING ZHONG**

TENTATIVE RULING:

Pursuant to the Notice of Withdrawal filed January 28, 2026, defendants' motion to strike is DROPPED from calendar and the hearing date VACATED.

16. 9:00 AM CASE NUMBER: MSC21-02266

CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.

**HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT OF HACIENDA HOMES, INC.
FILED BY:**

***TENTATIVE RULING**

EBMUD's demurrer to Hacienda Homes, Inc.'s First Amended Cross-Complaint is sustained with leave to amend.

The operative cross-complaint fails to state facts sufficient to constitute a viable cause of action against EBMUD.

Because Hacienda has requested leave to amend, leave is granted to permit Hacienda to attempt to plead a timely and otherwise cognizable cause of action against EBMUD, if it can do so.

EBMUD shall prepare the order and serve and file notice of its entry.

Hacienda shall file and serve any amended cross-complaint within 20 days after service of notice of entry of order.

17. 9:00 AM CASE NUMBER: N23-2108
CASE NAME: GLEN STEWART VS. SUPERIOR COURT OF CALIFORNIA, COUNTY OF CONTRA COSTA
***HEARING ON MOTION IN RE: REQUEST FOR JUDICIAL NOTICE**
FILED BY: STEWART, GLEN
TENTATIVE RULING:

Plaintiff Glen Stewart ("Plaintiff") filed a Motion for Request for Judicial Notice on October 20, 2025 (the "Request for Judicial Notice"). The motion was set for hearing on February 9, 2026.

Analysis

The Request for Judicial Notice requests the Court take judicial notice of certain factual matters described in the motion and various attached exhibits:

1. My on-call work as a pathologist for Contra Costa County was a routine/basic assigned/required duty of the job. This is a well-known fact and common knowledge as can be stated from my employer, past and present pathologist co-workers, the medical staff office, and payroll services. An email from the Director of Payroll Services to CCCERA states that pathologists are mandated to be on-call because of the nature of their specialty. Also my job offer letter states that on-call work is part of my regular work week.
See Appendix A.

2. During my on-call work as a pathologist for Contra Costa County, I was working as the Laboratory Director for the clinical laboratory at Contra Costa Regional Medical Center (CCRMC). The clinical laboratory at CCRMC is open 24 hours. California Code of Regulations state that when an acute care hospital, such as the hospital at CCRMC, is open, a physician shall have overall responsibility for the clinical laboratory service and be on duty or on call at all times, and that physician shall be a Board Certified Pathologist. This is a well-known fact and common knowledge as can be stated from my employer, past and present pathologist co-workers, the medical staff office, and all clinical laboratory staff.
See Appendix B.

See Request for Judicial Notice, p. 2.

These matters are not the proper subject of either mandatory or permissive judicial notice. Evid. Code §§ 452 and 453; see Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025), § 9:54.

Disposition

The Court finds and rules as follows:

1. The Request for Judicial Notice is DENIED.
2. The Court shall enter the order after hearing.